

1.

CASE #	CASE NAME	HEARING NAME
CVRI2203789	PROTECTIVE INSURANCE COMPANY vs FNS TRANSPORT INC.	DEMURRER ON 4TH AMENDED CROSS-COMPLAINT

Tentative Ruling:

GRANT all Requests for Judicial Notice.

OVERRULE the demurrer to the first and fourth causes of action. Res Judicata is inapplicable. The allegations of agency are sufficient to establish a duty to FNS. FNS's allegations that it suffered substantial economic damage are sufficient at this pleadings stage. The negligence claims are not barred by the economic loss rule.

SUSTAIN the demurrer to second and third causes of action, with 30 days' leave to amend. For Breach of Fiduciary Duty, FNS cites to no authority for the proposition that an insurance broker is a fiduciary of the insured. For Negligent Misrepresentation, FNS claims that Marsh represented that it would administer RIGHTSUM in a competent and professional manner. These statements reflect opinions regarding future events rather than existing facts, and as such are not actionable under a negligence theory. Moreover, in pleading fraud against a corporate entity, the Plaintiff must allege the name of the corporate agent who spoke and his or her authority to speak on behalf of the corporation. Here, FNS fails to name any agent, and hence this cause of action lacks the required specificity.

SUSTAIN the demurrer to the fifth and sixth causes of action, without leave to amend. Cross-Complainant has not provided a single document showing that Marsh is a party to any contract, including the Renewed WC Program Agreement, nor does it establish that other documents or representations were intended to function as contracts. FNS has had multiple opportunities to plead an actual enforceable contract but has failed to do so. Because FNS has not established the existence of a contract between itself and Marsh, it cannot establish a breach of the covenant of good faith and fair dealing that impliedly runs with the contract.

2.

CASE #	CASE NAME	HEARING NAME
CVRI2203789	PROTECTIVE INSURANCE COMPANY vs FNS TRANSPORT INC.	MOTION FOR SUMMARY JUDGMENT ON 3RD AMENDED CROSS-COMPLAINT

Tentative Ruling:

DENY as moot.

Cross-Complainant filed a Fourth Amended Cross-Complaint (4thACC) on July 14, 2026. The 4thACC is now the operative Complaint in this action, superseding the Third Amended Cross-Complaint (TACC). The Motion for Summary Judgment addresses the

TACC, not the 4th ACC. “Because there is but one complaint in a civil action, the filing of an amended complaint moots a motion directed to a prior complaint.” (*S.C. v. Doe 1* (2025) 115 Cal.App.5th 365, 384.) Once a pleading has been superseded, the court may not sustain a demurrer or grant summary adjudication on a cause of action contained in a previous complaint. (*JKC3H8 v. Colton* (2013) 221 Cal.App.4th 468, 477.) The party seeking summary adjudication must file a subsequent motion or renew the earlier motion if appropriate. (*Ibid.*) The issue of FNS’s failure to plead damages in the 4thACC is properly addressed at the hearing on the demurrer.

3.

CASE #	CASE NAME	HEARING NAME
CVRI2203789	PROTECTIVE INSURANCE COMPANY vs FNS TRANSPORT INC.	MOTION FOR JUDGMENT ON THE PLEADINGS ON 3RD AMENDED CROSS-COMPLAINT

Tentative Ruling:

DENY as moot.

The Motion for Judgment on the Pleadings (MJOP) is to the TACC. For the reasons stated above, the Motion is denied without prejudice as moot.

4.

CASE #	CASE NAME	HEARING NAME
CVRI2504760	BARRAGAN vs GUZMAN	MOTION TO SET ASIDE DISMISSAL

Tentative Ruling:

GRANT

The dismissal of Defendant Donald Mckinnon on 5/1/2026 is set aside.

Matter is set for an OSC Re: Dismissal for Failure to provide proof of service on Donald McKinnon, to be heard on: 9/21/2026, at 8:30am, D-4.

5.

CASE #	CASE NAME	HEARING NAME
CVRI2505886	CINEMATIC CAPITAL CORP., vs WILLIAMS	DEMURRER ON 1ST AMENDED COMPLAINT

Tentative Ruling:

The hearing on the demurrer is ordered continued to 10/21/2026, at 8:30am, D-4. The parties are ordered to further meet and confer regarding the demurrer.